working till late evening is a fairly common phenomenon.

With their growing participation in the workforce has come the question of women's safety, brought into brutal focus by the Kolkata case. And not just at their workplace, but even beyond, say, during their commute to and from office. Crimes against women in general have shown a worrying rise across the country in recent years. So have crimes against them at the workplace. Just the cases filed under the Prevention of Sexual Harassment, or PoSH, Act increased by 29 per cent, from 1,807 in FY23 to 2,325 in FY24, according to a study of 708 companies listed on the National Stock Exchange by Udaiti Foundation, a Delhi-based organisation for the economic empowerment of women. Research by the International Labour Organization, released in December 2022, found that more than one out of every five employees—almost 23 per cent globally—have experienced violence and harassment in the workplace, whether physical, psychological, or sexual. India is said to be no exception. Sexual harassment, however, is only the more extreme of the offences that women have to put up with, there are countless other everyday slights that women suffer. "Only crimes that push an individual's limit are reported," says Audrey D'Mello, director at the Majlis Legal Centre, which offers legal and social support to women and children victims. "The smaller, everyday incidents of touching, obscene comments, lewd jokes, showing pornography, which constitute the majority of harassment, go unreported."

Lack of safety apart, women are often denied such basics as a separate toilet, a resting space, or a safe commute home—things that are mandated by law but honoured more in the breach than in the observance. Take the readymade garments sector, which employs over 12 million people, the majority of whom are women. A January 2024 study by the Karnataka-based civil rights organisation Cividep India flagged innumerable violations of the laws for women working in Bengaluru's garment industry. The metropolis has 500 such units, employing 500,000 workers, mostly women. "Sixty-eight per cent of the workers reported that their factory has restricted toilet visits and time, enforced through surveillance and verbal abuse," it noted. "They also mentioned punishments like physical isolation and instances of sexual harassment." And though most companies had grievance redressal committees, worker dissatisfaction was rarely articulated as formal complaints, since 93 per cent of them had not signed a written contract of employment, making it easy for their jobs to be terminated.

The story repeats itself, ad nauseam. During a visit to the factory of a large company on the outskirts of Chennai, Nirmala Menon, founder of the Diversity, Equity and Inclusion (DEI) consulting firm Interweave, discovered that the 30-odd women employees there had to use a makeshift shed on the terrace on the third floor as a bathroom, without any lighting. When asked how they managed, the women said they went in groups of two to three, while others waited outside. A 2019 survey by the Vidhi Centre for Legal Policy found that 100 district court complexes, out of the 665 assessed, lacked toilet facilities for women, and even among the 585 complexes (88 per cent) that had washrooms, 60 per cent were not fully functional. Women lawyers in a Nilgiris court had been demanding a toilet in the court complex for over two decades.

Then there is transportation. The rise of the BPO industry in the late 1990s, and the proliferation of call centres conforming to the working hours of their western headquarters, ushered in the night shift and the trend of office pick-ups and drops for employees. But crammed cabs and long hours have made these more of an ordeal than a convenience. As Stutee Ghosh, Mumbai-based radio jockey, film critic and chat show host, recounts, "As part of the graveyard shift [in Delhi], I'd come in at 9 pm and go live from midnight to 2 am. We had an office cab drop us, but it was a thing. *She* has to be dropped and there have to be more people in the office. Suddenly, you are made to feel your gender matters, it's a little more work."

29%

RISE IN CASES FILED UNDER THE PoSH ACT, FROM 1,807 IN FY23 TO 2,325 IN FY 24

68%

OF 500,000 WORKERS IN BENGALURU'S GARMENT FACTORIES REPORTED THEIR ESTABLISHMENT HAD RESTRICTED TOILET VISITS AND TIME

59%

OF THE 200 COMPANIES SURVEYED BY DELHI-BASED UDAITI FOUNDATION DID NOT HAVE INTERNAL COMMITTEES AS THE PoSH ACT MANDATES

WHY INDIA'S LAWS HAVE FAILED ITS WOMEN

It is not as though legislation has been blind to the specific needs of women. The Factories Act, 1948; the Contract Labour (Regulation and Abolition) Act, 1970; the Inter-State Migrant Workmen (RE&CS) Central Rules, 1980; and the states-specific Shops & Establishment Act all have separate provisions regarding separate toilets and restrooms for women, creches for their children, canteens on the premises, reasonable working hours, transportation home. The PoSH Act, 2013, mandates that all organisations with 10 or more employees establish an Internal Committee (IC) to inquire into complaints and prepare an annual report to be submitted to the district officer.

Yet in establishment after establishment, these facilities are found missing. While corporates do at least the bare minimum to stay on the right side of the law, "in most smaller institutions like the MSMEs [micro, small and medium enterprises], government offices, police stations, and even the courts," says D'Mello of Majlis, "there is a complete lack of policy implementation, and even the basic safety requirements are not met." The